

6	30-2015-00776114 Semprini vs. Wedbush Securities Inc.	The tentative ruling is to continue Plaintiffs Joseph Semprini and Bradley Swain’s (collectively, “Plaintiffs”) Motion for Preliminary Approval of Class Action and PAGA Settlement to November 2, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiffs failed to provide the court with a text-searchable settlement agreement in compliance with CRC 2.256(b)(3). The settlement provides for the employer’s share of payroll taxes to come out of the gross settlement amount. The court does not consider the employer’s share of payroll taxes to be part of the common fund on which plaintiff’s attorneys’ fees are calculated, and thus, at final approval, plaintiffs should expect a reduction in plaintiffs’ attorney fee award on that basis. Paragraph 5.2 of the Settlement Agreement includes in the class release Labor Code §§ 210, 223, 226.3, 245-249, 516, 1174, 1194 and 1198, but the court will not approve the release of any claims that are outside of the scope of the operative complaint. The parties must either remove reference to these statutes in the release, or provide an explanation as to how claims based on these statutes arise from the facts alleged in the operative complaint. The following corrections must be made to the class notice: (1) The page numbers should start with 1. (2) On page 31 of the Class Notice, Section B should be titled “Deductions from Gross Settlement Subject to Final Approval by the Court,” not “Court Approved Deductions from Gross Settlement.” (3) Section H on page 32 of the Class Notice should remove any reference to Requests for Exclusion as there are none in this settlement claims process.
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		Plaintiffs have not shown that they served the LWDA with their moving papers. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant, to serve the LWDA with their original moving papers as well as any new papers filed for future hearings, and to file a proof of service showing such compliance.
7	30-2023-01346806 Herrera vs. 180 Snacks, Inc.	The tentative ruling is to continue Plaintiff's Motion for Preliminary Approval of Class and Representative Action Settlement to December 7, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns below (not fully revised papers that would have to be reread) no later than 16 days before the next hearing date. Counsel must provide red-lined versions of all revised papers and settlement provisions. Counsel also should provide the court with an explanation of how the issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. <u>As to the settlement:</u> 1. The settlement provides it must be determined, prior to preliminary approval, whether the escalator provision has been triggered and, if so, defendants' election of option. ¶ 8. 2. Provide the highest and lowest estimated individual class and PAGA awards. 3. As provided in the settlement (¶¶ 6.1-6.2) the parties (including defendants) should advise, in declarations filed with the court, whether, after making reasonable inquiry, they have become aware since executing the settlement agreement of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declarations must also state the name and case number of any such case and the procedural status of that case, and must describe the impact of the settlement on that case. 4. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of